

equity," said Lord Guildford, "you could come nearer to a perpetuity than the rules of common law would admit, all men, being desirous to continue their estates in their families, would settle their estates by way of trust, which might indeed make well for the jurisdiction of Chancery, but would be destructive to the commonwealth" (*b*). Thus, if an estate be limited to trustees for 500 years upon the trusts thereafter declared, and subject thereto in strict settlement, and then the trusts are declared to be to enter and manage the estate during the minority of any tenant for life or in tail, the trusts are void, for the tenant in tail cannot bar them, and they might last for centuries (*c*). [So if real estate be devised to trustees upon trust to retain a yearly sum out of the rents and profits, and subject thereto the estate is devised in strict settlement, and the trustees are directed during the continuance of the limitations to accumulate the yearly sum, the trust is void (*d*).]

*** Restraint of anticipation.**—So, again, if a power [*98] of appointment amongst the issue be contained in a marriage settlement, the donee of the power cannot appoint to the daughters for their sole and separate use *without power of anticipation*, for this would tie up the estate beyond the legal limits. While the appointment, therefore, to the daughters is good, the condition in restraint of alienation is void (*a*).

(*b*) S. C. 1 Vern. 164.

(*c*) Floyer v. Bankes, 8 L. R. Eq. 115; and see Sykes v. Sykes, 13 L. R. Eq. 56, and the cases there cited.

[(*d*) Cochrane v. Cochrane, 11 L. R. Ir. 361; Browne v. Stoughton, 14

Sim. 369; and see Longfield v. Bantry, 15 L. R. Ir. 101.]

(*a*) See Armitage v. Coates, 36 Beav. 1, and the cases there cited; and *Re* Cunynghame's Settlement, 11 L. R. Eq. 324; *Re* Teague's Settle-

accumulation; Williams Est. 13 Phila. (Pa.) 325; to pay \$5000 per year from the income alone; Veazie v. Forsaith, 76 Me. 172; Whipple v. Fairchild, 139 Mass. 262. Lease of railroad for 999 years is good; Todhunter v. Des Moines & C. R. R. Co. 58 Ia. 205. For instances where not void as a perpetuity, see Spindle v. Shreve, 9 Biss. C. C. 199; Fullerton v. Ins. Co. 10 Abl. (N. Y.) New Cases, 364; for others which are void, see Kent v. Dunham, 142 Mass. 216; Brattle Sq. Church v. Grant, 3 Gray, 142; Nightingale v. Burrell, 15 Pick. 104. "Transgressive" trusts in equity the same as perpetuities at law; Philadelphia v. Girard, 45 Pa. St. 9; 84 Am. Dec. 470. It is to be borne in mind that the general rules relating to perpetuities do not apply to charitable trusts.